AUTHENTICATED U.S. GOVERNMENT INFORMATION GPO

THE NATIONAL ARCHIVES
LITTERA SCRIPTA MANET
FEDERAL REGISTER
OF THE UNITED STATES 1934

VOLUME I NUMBER 96

Washington, Saturday, July 25, 1936

PRESIDENT OF THE UNITED STATES.

HOMOCHITTO NATIONAL FOREST—MISSISSIPPI

By the President of the United States of America

A PROCLAMATION

WHEREAS certain forest lands within the State of Mississippi have been or may hereafter be acquired by the United States of America under the authority of sections 6 and 7 of the act of March 1, 1911, ch. 186, 36 Stat. 961, as amended (U. S. C., title 16, secs. 515, 516); and

WHEREAS it appears that it would be in the public interest to reserve and designate said lands and certain adjoining public lands as the Homochitto National Forest:

NOW, THEREFORE, I, FRANKLIN D. ROOSEVELT, President of the United States of America, by virtue of the authority vested in me by section 24 of the act of March 3, 1891, ch. 561, 26 Stat. 1095, 1103, as amended (U. S. C., title 16, sec. 471), and section 11 of the said act of March 1, 1911 (U. S. C., title 16, sec. 521), do proclaim that there are hereby reserved and set apart as the Homochitto National Forest all lands of the United States within the area shown on the diagram hereto attached and made a part hereof,[1] and that all lands therein which may hereafter be acquired by the United States under authority of the said act of March 1, 1911, as amended, shall upon their acquisition be reserved and administered as a part of the Homochitto National Forest.

The reservation made by this Proclamation shall as to all lands which are at this date legally appropriated under the public-land laws or reserved for any public purpose other than classification be subject to, and shall not interfere with or defeat, legal rights under such appropriation, nor prevent the use for such public purpose of lands so reserved, so long as such appropriation is legally maintained or such reservation remains in force.

IN WITNESS WHEREOF I have hereunto set my hand and caused the seal of the United States to be affixed.

DONE at the City of Washington this 20th day of July, in the year of our Lord nineteen hundred and thirty-six and of the Independence of the United States of America the one hundred and sixty-first.

[SEAL]

FRANKLIN D ROOSEVELT

By the President:

CORDELL HULL
Secretary of State.

[No. 2191]

[F. R. Doc. 1411—Filed, July 24, 1936; 11:54 a. m.]

[1] *See* p. 1019.

EXECUTIVE ORDER

PROCEDURE RELATING TO THE APPOINTMENT OF FIRST, SECOND, AND THIRD CLASS POSTMASTERS

By virtue of and pursuant to the authority vested in me by Section 1753 of the Revised Statutes (U. S. C., title 5, sec. 631), by the Act of July 12, 1876 (U. S. C., title 39, sec. 31), and as President of the United States, it is hereby ordered that whenever a vacancy occurs in the position of postmaster in any office of the first, second, or third class as the result of (1) death, (2) resignation, (3) removal, or (4) expiration of term, the following procedure shall be observed, in accordance with the provisions of the Civil Service Act of January 16, 1883 (22 Stat. 403), and the rules and regulations made pursuant to the said Act, in so far as such provisions may be applicable:

SEC. 1 (a) The Postmaster General may recommend to the President the appointment of the incumbent, or the appointment by promotion of a classified employee in the Postal Service in the vacancy office, provided either such incumbent or such classified employee is found eligible by the Civil Service Commission by noncompetitive examination; or

(b) Upon request of the Postmaster General, the Civil Service Commission shall forthwith hold an open competitive examination to test the fitness of applicants to fill such vacancy and shall certify the results thereof to the Postmaster General, who shall thereupon submit to the President for appointment to fill the vacancy the name of the highest eligible unless it is established to the satisfaction of the Civil Service Commission that the character or residence of such eligible disqualifies him for appointment. This procedure shall be followed in all examinations announced by the Civil Service Commission subsequent to the date of this order.

SEC. 2. No person may be admitted to the examinations provided for in Section 1 hereof unless he has been a bona fide patron of the office for which a postmaster is to be appointed, for at least one year immediately preceding the time fixed for the close of receipt of applications.

SEC. 3. No person who has passed his sixty-seventh birthday shall be appointed acting postmaster in any office of the first, second, or third class unless he is already in the Postal Service, nor shall any such person, except as provided in Section 4 hereof, be admitted to any examination which may be held for any such office under the provisions of Section 1.

SEC. 4. In all examinations held under the provisions of Section 1 hereof, the age limit prescribed in Section 3 shall be waived as to candidates who are entitled to military preference as a result of service in the World War, the Spanish-American War, or the Philippine insurrection, and in rating the examination papers of such candidates the Civil Service Commission shall add five points to their earned ratings and make certification to the Postmaster

FEDERAL REGISTER

Published by the Division of the FEDERAL REGISTER, The National Archives, pursuant to the authority contained in the Federal Register Act, approved July 26, 1935 (49 Stat. L. 500), under regulations prescribed by the Administrative Committee, with the approval of the President.

The Administrative Committee consists of the Archivist or Acting Archivist, an officer of the Department of Justice designated by the Attorney General, and the Public Printer or Acting Public Printer.

The daily issue of the FEDERAL REGISTER will be furnished by mail to subscribers, free of postage, for $1 per month or $10 per year; single copies 5 cents; payable in advance. Remit by money order payable to Superintendent of Documents, Government Printing Office, Washington, D. C.

Correspondence concerning the publication of the FEDERAL REGISTER should be addressed to the Director, Division of the FEDERAL REGISTER, The National Archives, Washington, D. C.

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General in accordance with their relative positions thus acquired. The time such candidates were in the service during such wars may be reckoned by the Commission in making up the required length of business experience.

SEC. 5. This order supersedes all prior Executive orders affecting or relating to the appointment of postmaster to post offices of the first, second, and third classes.

FRANKLIN D ROOSEVELT

JULY 20, 1936.

[No. 7421]

[F. R. Doc. 1420—Filed, July 24, 1936; 3:30 p. m.]

FEDERAL HOME LOAN BANK BOARD.

Home Owners' Loan Corporation.

ADDITIONAL SECURITY FOR LOAN

Be it resolved, That pursuant to the authority vested in the Board by Home Owners' Loan Act of 1933 (48 Stat. 128, 129), as amended by Sections 1 and 13 of the Act of April 27, 1934 (48 Stat. 643–647) and particularly by Sections 4–a and 4–k of said Act as amended, Section 35 of Chapter VI of the State Manual be revoked; and be it further

Resolved, That Section 1 of Chapter XX of the State Manual and Section 1 of Chapter IV of the Regional Manual be amended by the addition thereto of a new subsection which shall be designated "n" which shall read as follows:

n. *Additional Security for Loan.*—The General Manager, a Deputy General Manager, or a Regional Manager with the advice of the General Counsel, an Associate General Counsel, or a Regional Counsel may authorize and direct the acceptance of additional security for the Corporation's loans in such form and by such method as he may deem advisable when it appears that the best interests of the Corporation will be served thereby; the authority herein granted to the Regional Manager and Regional Counsel being subject to instructions and procedure promulgated by the General Manager or a Deputy General Manager and the General Counsel or an Associate General Counsel for the administration hereof.

[SEAL] R. L. NAGLE, *Secretary.*

[F. R. Doc. 1409—Filed, July 24, 1936; 9:59 a. m.]

FEDERAL TRADE COMMISSION.

United States of America—Before Federal Trade Commission

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the 20th day of July A. D. 1936.

Commissioners: Charles H. March, Chairman; Garland S. Ferguson, Jr., Ewin L. Davis, W. A. Ayres, Robert E. Freer.

[File No. 21–270]

IN THE MATTER OF TRADE PRACTICE RULES FOR THE FLAT GLASS MANUFACTURING AND DISTRIBUTING INDUSTRY

PROMULGATION OF TRADE PRACTICE RULES

Due proceedings having been had under the trade practice conference procedure in pursuance of the Act of Congress approved September 26, 1914 (38 Stat. 717),

It is now ordered, that the trade practice rules of Group I which have been approved by the Commission in this proceeding and those of Group II which have been received by the Commission as expressions of the industry be, and the same are, hereby promulgated for the Flat Glass Manufacturing and Distributing Industry, as follows:

GROUP I

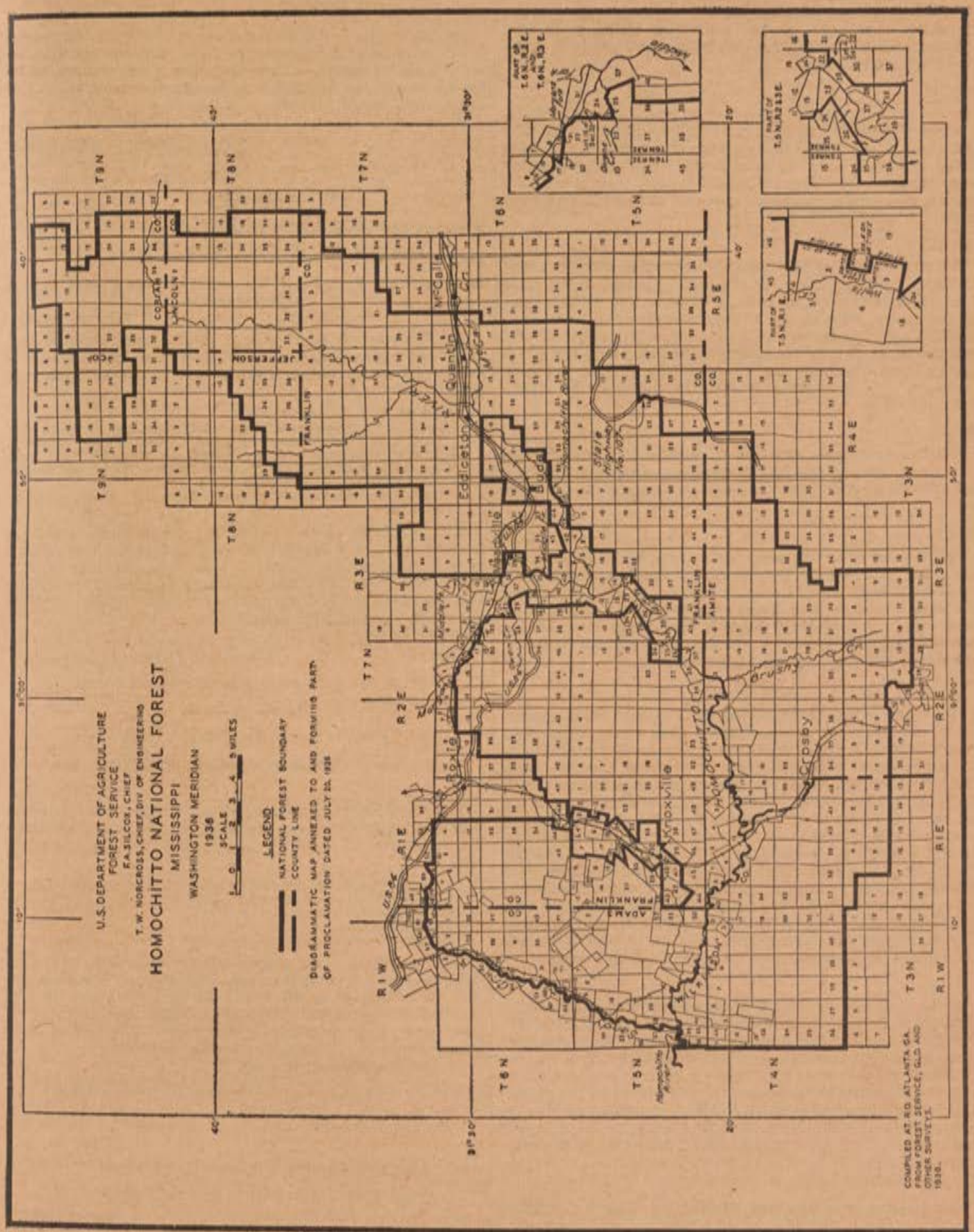
The unfair trade practices which are embraced in Group I rules are considered to be unfair methods of competition within the decisions of the Federal Trade Commission and the Courts, and appropriate proceedings in the public interest will be taken by the Commission to prevent the use of such unlawful practices in or directly affecting interstate commerce.

Rule 1.

Wilfully inducing or attempting to induce, by any false or deceptive means whatsoever, the breach of any lawful contract or contracts existing between competitors and their customers or their suppliers, or wilfully interfering with or obstructing the performance of any such contractual duties or services, with the purpose and effect of unduly hampering, injuring, or embarassing competitors in their businesses, is an unfair trade practice.

Rule 2.

The false or deceptive marking or branding of products of the industry for the purpose or with the capacity, tendency or effect of misleading or deceiving purchasers, prospective purchasers, or the consuming public with respect to the grade, quality, quantity, use, size, material, content, origin, preparation, manufacture, or distribution of such products, or in any other material respect, is an unfair trade practice.


U.S. DEPARTMENT OF AGRICULTURE
FOREST SERVICE
F.A. SILCOX, CHIEF
T.W. NORCROSS, CHIEF, DIV. OF ENGINEERING
HOMOCHITTO NATIONAL FOREST
MISSISSIPPI
WASHINGTON MERIDIAN
1936
SCALE
0 1 2 3 4 5 MILES
LEGEND
NATIONAL FOREST BOUNDARY
COUNTY LINE
DIAGRAMMATIC MAP ANNEXED TO AND FORMING PART OF PROCLAMATION DATED JULY 22, 1936
COMPILED AT R.O. ATLANTA GA. FROM FOREST SERVICE, G.L.O. AND OTHER SURVEYS. 1936.
T9N
T8N
T7N
T6N
T5N
T4N
T3N
R1W
R1E
R2E
R3E
R4E
R5E
Roxie
Crosby
Liberty
Bude
Meadville
Eddiceton
Quentin
Gloster
Fernwood
Jayess
Smithdale
Gillsburg
Mt. Carmel
Wesson
Crystal Springs
Hazlehurst
Brookhaven
Monticello
Natchez
Vicksburg
Jackson
Meridian
Tylertown
McComb
Magnolia
Summit
Osyka
Centreville
Woodville
Fayette
Port Gibson
Lincoln Co.
Franklin Co.
Amite Co.
Wilkinson Co.
Adams Co.
Jefferson Co.
Pike Co.
Copiah Co.
Lawrence Co.
Walthall Co.
Marion Co.
Hancock Co.
Pearl River Co.
Louisiana
Mississippi

Rule 3.

The sale or offering for sale of any product of the industry with the intent and with the effect of deceiving purchasers, prospective purchasers, or the consuming public as to the quantity, quality, substance, or size of such product is an unfair trade practice.

Rule 4.

In the sale, offering for sale, or shipment of window, sheet, or other flat glass, the failure to brand, mark, or identify such glass so as to disclose its true character, where such failure to brand, mark, or identify such glass has the tendency, capacity, or effect of misleading or deceiving purchasers, prospective purchasers, or the consuming public, is an unfair trade practice.

Rule 5.

The secret payment or allowance of rebates, refunds, commissions, credits, or unearned discounts, whether in the form of money or otherwise, or secretly extending to certain purchasers special services or privileges not extended to all purchasers under like terms and conditions, with the intent and with the effect of injuring a competitor and where the effect may be to substantially lessen competition or tend to create a monopoly or unreasonably restrain trade, is an unfair trade practice.

Rule 6.

Price discrimination contrary to Section 2 of the Clayton Act as amended by the Act of Congress, approved June 19, 1936 (Public No. 692, 74th Congress), is an unfair trade practice.

Rule 7.

The practice of selling goods below the seller's cost with the intent and with the effect of injuring a competitor and where the effect may be to substantially lessen competition or tend to create a monopoly or unreasonably restrain trade, is an unfair trade practice; all elements recognized by good accounting practice as proper elements of such cost shall be included in determining cost under this rule.

GROUP II

The trade practices embraced in Group II rules do not, *per se*, constitute violations of law. They are considered by the industry either to be unethical, uneconomical or otherwise objectionable; or to be conducive to sound business methods which the industry desires to encourage and promote. Such rules, when they conform to the above specifications and are not violative of law, will be received by the Commission, but the observance of said rules must depend upon and be accomplished through the cooperation of the members of the industry concerned, exercised in accordance with existing law. Where, however, such practices are used in such manner as to become unfair methods of competition in commerce or a violation of any law over which the Commission has jurisdiction, appropriate proceedings will be instituted by the Commission as in the case of violation of Group I rules.

Rule A.

As the shipment by manufacturers of window glass without labels on each light showing the quality of such glass makes possible the easy substitution of a lower quality of glass for a higher quality, particularly when such glass is removed for shipment or use from the original factory container, the industry hereby records its approval of the labeling by manufacturers in accordance with accepted standards of the industry of each light of window glass showing its thickness and quality as a means of preventing deception of the purchasing public.

Rule B.

The industry approves the practice of handling business disputes between members of the industry and their customers in a fair and reasonable manner, coupled with a spirit of moderation and good will, and every effort should be made by the disputants themselves to compose their differences. If unable to do so they should, if possible, submit these disputes to arbitration.

Rule C.

Contracts, either written or oral, are business obligations which should be performed in letter and in spirit. The repudiation of contracts by sellers on a rising market, or by buyers on a declining market, is equally reprehensible, and is condemned by the industry.

By the Commission.

[SEAL] OTIS B. JOHNSON, *Secretary.*

[F. R. Doc. 1410—Filed, July 24, 1936; 10:26 a. m.]

INTERSTATE COMMERCE COMMISSION.

[Fourth Section Application No. 16437]

IRON OR STEEL PIPE FROM, TO, AND BETWEEN POINTS IN THE SOUTHWEST

JULY 24, 1936.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act:

Filed by: F. A. Leland, Agent.
Commodities involved: Wrought drill pipe, not in coils, may have drill pipe couplings or joints affixed, or integral joints.
Between: Points in the Southwest, on the one hand, and points in the Southwest, Western, Illinois, Official, and Southern territories, on the other hand.
Grounds for relief: Carrier competition and analogous commodity.

Any interested party desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice; otherwise the Commission may proceed to investigate and determine the matters involved in such application without further or formal hearing.

By the Commission, division 2.

[SEAL] GEORGE B. MCGINTY, *Secretary.*

[F. R. Doc. 1412—Filed, July 24, 1936; 12:20 p. m.]

[Fourth Section Application No. 16438]

COTTON FROM MERIDIAN, MISS., TO MOBILE, ALA.

JULY 24, 1936.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act,

Filed by: Gulf, Mobile and Northern Railroad Company.
Commodity involved: Cotton, carloads.
From: Meridian, Miss.
To: Mobile, Ala.
Grounds for relief: Circuitous routes.

Any interested party desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice; otherwise the Commission may proceed to investigate and determine the matters involved in such application without further or formal hearing.

By the Commission, division 2.

[SEAL] GEORGE B. MCGINTY, *Secretary.*

[F. R. Doc. 1413—Filed, July 24, 1936; 12:20 p. m.]

[Fourth Section Application No. 16439]

SUGAR FROM PHILADELPHIA, PA., TO FULTON, N. Y.

JULY 24, 1936.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short haul provision of section 4 (1) of the Interstate Commerce Act,

Filed by: W. S. Curlett, Agent.
Commodity involved: Sugar, carloads, minimum weight 60,000 pounds.
From: Philadelphia, Pa.
To: Fulton, N. Y.
Grounds for relief: Water competition and truck competition.

Any interested party desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice; otherwise the Commission may proceed to investigate and determine the matters involved in such application without further or formal hearing.

By the Commission, division 2.

[SEAL] GEORGE B. MCGINTY, *Secretary.*

[F. R. Doc. 1414—Filed, July 24, 1936; 12:21 p. m.]

[Fourth Section Application No. 16440]

RATES—THE ATCHISON, TOPEKA, AND SANTA FE RAILWAY

JULY 24, 1936.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act,

Filed by: The Atchison, Topeka and Santa Fe Railway Company.
Commodities involved: Rates, routes, and charges.
From, to, and between points on the Atchison, Topeka, and Santa Fe Railway, also between points in the United States via routes in connection with the Atchison, Topeka, and Santa Fe Railway.
Grounds for relief: Circuitous routes; abandonment of that portion of the Santa Fe line running between Hawthorne and Leavenworth, Kans., resulting in new routes.

Any interested party desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice; otherwise the Commission may proceed to investigate and determine the matters involved in such application without further or formal hearing.

By the Commission, division 2.

[SEAL] GEORGE B. MCGINTY, *Secretary.*

[F. R. Doc. 1415—Filed, July 24, 1936; 12:21 p. m.]

SECURITIES AND EXCHANGE COMMISSION.

United States of America—Before Securities and Exchange Commission

At a regular session of the Securities and Exchange Commission, held at its office in the City of Washington, D. C., on the 22nd day of July A. D. 1936.

[File No. 2-2280]

IN THE MATTER OF REGISTRATION STATEMENT OF MINING AND DEVELOPMENT CORPORATION

ORDER CHANGING DESIGNATION OF OFFICER AND FIXING TIME AND PLACE FOR TAKING TESTIMONY

The Commission having heretofore, on July 14, 1936, designated E. A. MacDuffie and Robert P. Reeder, officers of the Commission, to take testimony at a hearing to be held in this matter at Room 1103, Securities and Exchange Commission Building, 1778 Pennsylvania Avenue NW., Washington, D. C., on July 23, 1936,

And subsequently having advanced such hearing to 4:30 P. M., Daylight Saving Time on July 14, 1936, at 120 Broadway, New York, N. Y.,

It is ordered, that Edward H. Cashion, an officer of the Commission, be, and he hereby is, designated to administer oaths and affirmations, subpoena witnesses, compel their attendance, take evidence, and require the production of any books, papers, correspondence, memoranda, or other records deemed relevant or material to the inquiry, and to perform all other duties in connection therewith authorized by law, and

It is further ordered, that the taking of testimony in this proceeding be continued beginning on the 28th day of July 1936 at 10 A. M., Daylight Saving Time, at Room 2017, 120 Broadway, New York, N. Y., and continue thereafter at such times and places as said officer may determine.

Upon the completion of testimony in this matter, the officer is directed to close the hearing and make his report to the Commission.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Acting Secretary.*

[F. R. Doc. 1416—Filed, July 24, 1936; 12:55 p. m.]

United States of America—Before the Securities and Exchange Commission

At a regular session of the Securities and Exchange Commission held at its office in the City of Washington, D. C., on the 23rd day of July A. D. 1936.

[Filed on July 17, 1936]

IN THE MATTER OF ALM OIL CORPORATION OFFERING SHEET OF A ROYALTY INTEREST IN BARNSDALL-FITZHUGH PLACE LEASE

SUSPENSION ORDER, ORDER FOR HEARING (UNDER RULE 340 (A)) AND ORDER DESIGNATING A TRIAL EXAMINER

The Securities and Exchange Commission, having reasonable grounds to believe, and therefore alleging, that the offering sheet filed by Alm Oil Corporation on the 17th day of July 1936, covering a certain royalty interest in the property described therein as Barnsdall-Fitzhugh Place Lease is incomplete or inaccurate in the following material respects, to wit:

1. In that the answer to Item 19 of Division II contains no sufficient reason for the failure to include an estimation of the amount of oil or gas which may be recoverable from the property involved.

2. In that the record of one day's production constitutes no basis upon which to estimate the amount of oil or gas which may be recoverable from the property involved.

3. In that the answer to Item 19 of Division II is not a fair and sufficient reason to explain the omission of an estimation of recoverable oil or gas such as to cause the offering sheet as filed not misleading.

It is ordered, pursuant to Rule 340 (a) of the Commission's General Rules and Regulations, under the Securities Act of 1933, as amended, that the effectiveness of the filing of said offering sheet be, and the same hereby is, suspended until the 18th day of August 1936; that an opportunity for hearing be given to the said Alm Oil Corporation for the purpose of determining the material completeness or accuracy of the said offering sheet in the respects in which it is herein alleged to be incomplete or inaccurate, and whether the said order of suspension should be revoked or continued; and

It is further ordered that John H. Small, an officer of the Commission be, and he hereby is, designated as Trial Examiner to preside at such hearing, to adjourn the said hearing from time to time, to administer oaths and affirmations, subpoena witnesses, compel their attendance, take evidence, consider any amendments to such offering sheet as may be filed prior to the conclusion of the hearing, and require the production of any books, papers, correspondence, memoranda, or other records deemed relevant or material to the inquiry, and to perform all other duties in connection therewith authorized by law; and

It is further ordered that the taking of testimony in this proceeding begin on the 7th day of August 1936, at 4 o'clock in the afternoon of that day at the office of the Securities and Exchange Commission, 18th Street and Pennsylvania

Avenue, Washington, D. C., and continue thereafter at such times and places as said officer may designate.

Upon the completion of testimony in this matter the officer is directed to close the hearing and make his report to the Commission.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Acting Secretary.*

[F. R. Doc. 1419—Filed, July 24, 1936; 12:56 p. m.]

United States of America—Before the Securities and Exchange Commission

At a regular session of the Securities and Exchange Commission held at its office in the City of Washington, D. C., on the 23rd day of July A. D. 1936.

[Filed on July 17, 1936]

IN THE MATTER OF H. P. BOWEN, OFFERING SHEET OF A ROYALTY INTEREST IN CARTER-ATKINSON FARM

SUSPENSION ORDER, ORDER FOR HEARING (UNDER RULE 340 (A)) AND ORDER DESIGNATING A TRIAL EXAMINER

The Securities and Exchange Commission, having reasonable grounds to believe, and therefore alleging, that the offering sheet filed by H. P. Bowen on the 17th day of July 1936, covering a certain royalty interest in the property described therein as Carter-Atkinson Farm is incomplete or inaccurate in the following material respects, to wit:

In that the answer to Item 19, Division II is not

(a) a compliance with Rule 320A and Schedule A of the General Rules and Regulations under the Securities Act of 1933;

(b) supported by sufficient reason to indicate that the omission of the estimation of recoverable oil does not constitute the offering sheet as filed, misleading;

(c) a fair and full statement of a bona fide reason for omission to furnish an estimation of recoverable oil.

It is ordered, pursuant to Rule 340 (a) of the Commission's General Rules and Regulations under the Securities Act of 1933, as amended, that the effectiveness of the filing of said offering sheet be, and the same hereby is, suspended until the 19th day of August 1936; that an opportunity for hearing be given to the said H. P. Bowen for the purpose of determining the material completeness or accuracy of the said offering sheet in the respects in which it is herein alleged to be incomplete or inaccurate, and whether the said order of suspension should be revoked or continued; and

It is further ordered, that John H. Small, an officer of the Commission, be, and he hereby is, designated as Trial Examiner to preside at such hearing, to adjourn the said hearing from time to time, to administer oaths and affirmations, subpoena witnesses, compel their attendance, take evidence, consider any amendments to such offering sheet as may be filed prior to the conclusion of the hearing, and require the production of any books, papers, correspondence, memoranda, or other records deemed relevant or material to the inquiry, and to perform all other duties in connection therewith authorized by law; and

It is further ordered, that the taking of testimony in this proceeding begin on the 7th day of August 1936, at 2:00 o'clock in the afternoon of that day, at the office of the Securities and Exchange Commission, 18th Street and Pennsylvania Avenue, Washington, D. C., and continue thereafter at such times and places as said officer may designate.

Upon the completion of testimony in this matter the officer is directed to close the hearing and make his report to the Commission.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Acting Secretary.*

[F. R. Doc. 1417—Filed, July 24, 1936; 12:55 p. m.]

United States of America—Before the Securities And Exchange Commission

At a regular session of the Securities and Exchange Commission held at its office in the City of Washington, D. C., on the 23rd day of July A. D. 1936.

[Filed on July 17, 1936]

IN THE MATTER OF G. E. FISHER, OFFERING SHEET OF A ROYALTY INTEREST IN MAYES FARM

SUSPENSION ORDER, ORDER FOR HEARING (UNDER RULE 340 (A)) AND ORDER DESIGNATING A TRIAL EXAMINER

The Securities and Exchange Commission, having reasonable grounds to believe, and therefore alleging, that the offering sheet filed by G. E. Fisher on the 17th day of July 1936, covering a certain royalty interest in the property described therein as the Mayes Farm is incomplete or inaccurate in the following material respects, to wit:

1. In that only three and not four copies of offering sheet were filed.

2. In that required dates on statements are incorrect or omitted from your answers to Items 2 (d), 3 (a), 4, and 8 of Division II of the offering sheet and that the said offering sheet is unsigned.

3. In that Exhibit A required to be filed does not meet the requirements of the Rules and Regulations governing said filing.

4. In that Exhibit B is not signed by the offeror.

It is ordered, pursuant to Rule 340 (a) of the Commission's General Rules and Regulations under the Securities Act of 1933, as amended, that the effectiveness of the filing of said offering sheet be, and the same hereby is, suspended until the 19th day of August 1936; that an opportunity for hearing be given to the said G. E. Fisher for the purpose of determining the material completeness or accuracy of the said offering sheet in the respects in which it is herein alleged to be incomplete or inaccurate, and whether the said order of suspension should be revoked or continued; and

It is further ordered, that John H. Small, an officer of the Commission be, and he hereby is, designated as Trial Examiner to preside at such hearing, to adjourn the said hearing from time to time, to administer oaths and affirmations, subpoena witnesses, compel their attendance, take evidence, consider any amendments to such offering sheet as may be filed prior to the conclusion of the hearing, and require the production of any books, papers, correspondence, memoranda, or other records deemed relevant or material to the inquiry, and to perform all other duties in connection therewith authorized by law; and

It is further ordered, that the taking of testimony in this proceeding begin on the 7th day of August 1936 at 3:00 o'clock in the afternoon of that day at the office of the Securities and Exchange Commission, 18th Street and Pennsylvania Avenue, Washington, D. C., and continue thereafter at such times and places as said officer may designate.

Upon the completion of testimony in this matter, the officer is directed to close the hearing and make his report to the Commission.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Acting Secretary.*

[F. R. Doc. 1418—Filed, July 24, 1936; 12:56 p. m.]